

Criminal Misc.No.12560-B/2014

Muhammad Asim

The State etc.

13.11.2014. Mr.Sajid Bashir, Advocate.

Mr. Muhammad Naseem Akhter, DDPP with Zulfiqar, Inspector.

Rai Usman Ahmad, Advocate for the complainant.

The petitioner-Muhammad Asim seeks his post arrest bail in case FIR No.314-2014 dated 22.04.2014, under Sections 302, 460, 411 PPC, registered at Police Station, Township, Lahore.

2. Briefly stated the prosecution story as narrated in FIR is that some unknown accused persons committed murder of the complainant's step daughter as well as grand daughter of complainant during robbery, resulting into instant FIR.

3. The arguments heard and record perused.

4. Admittedly, the FIR was got lodged by the complainant against unknown accused persons and name of the petitioner along with co-accused was disclosed by the complainant through his supplementary statement made on the same day i.e. 22.04.2014. The allegation against the petitioner is that he along with his co-accused committed robbery in the house of the complainant, took away different articles and also

committed murder of two females namely Mst. Kanwal Javed aged about 34/35 years and Mst. Tayyaba Bibi aged about eleven years. Mere fact that after lodging of the FIR on the same day, the complainant nominated the accused persons and also provided list of robbed articles through a supplementary statement has not made out prosecution story doubtful. The petitioner can not claim bail on this ground, as it was brought to the notice of the Court that during the course of investigation, the evidence collected by the Investigating Officer connects the petitioner with the commission of the offence alleged against him. Buccal swabs of Mst.Kanwal Javed and Tayyaba have been taken by the Crime Scene Unit, Punjab Forensic Science Agency Lahore on 23.04.2014 from the bodies of the deceased and place of incident whereas swab of the petitioner along with his co-accused were taken on 30.04.2014. Further as per the Forensic expert opinion of the Punjab Forensic Science Agency, DNA profile of the source of right hand nails scraping of Tayyaba is similar with the DNA profile of the source of Muhammad Asim-petitioner and the DNA profile obtained from tape-roll affixed on the legs of Tayyaba, is similar with the DNA profile of the source of Muhammad Asim-petitioner. Coupled with it, is the fact that independent prosecution witnesses have identified the petitioner during identification parade. During investigation, LCD, laptop, two cameras, ipad, gold bangles six in numbers, three ladies wallets, suitcase and perfumes were recovered and memo of identification of

recovered articles was prepared on 25.05.2014. The above referred material connects the petitioner with the commission of offence and that he was responsible for the murder of the deceased for which he has been charged under Sections 460, 302 P.P.C. The petitioner has failed to point out any malice, ill will or enmity of the complainant and prosecution witnesses for false implication of the petitioner. I feel that the petitioner has not been able to make out a case for grant of bail.

5. In view of discussion, made hereinabove, I find no merits in this petition, which is **dismissed** accordingly.

(Aalia Neelum)
Judge

Approved for reporting.